

ENVIRONMENTS FREE FROM HARASSMENT, DISCRIMINATION, AND ABUSE

The Loudoun County Public Schools is committed to maintaining a working and educational environment for employees and students which provides for fair and equitable treatment free from harassment and discrimination, including freedom from sex discrimination and sexual harassment. The purpose of this policy is to establish a method for resolving complaints arising from alleged sexual harassment and harassment or discrimination. This includes any harassment or discrimination on the basis of race, national origin, ancestry, color, sex, sexual orientation, perceived sexual orientation, gender identity, pregnancy, childbirth or related medical conditions, marital status, age, religion, disability, genetic information, or veteran status.

Additionally, abusive behavior (as defined in Part II) that interferes with the work or educational environment is prohibited by this policy.

Part I of this policy applies to harassment and discrimination complaints filed by any individual against an adult in the work or educational environment, including but not limited to School Board employees, vendors or contractors to the school division, parents, or community members. School Board Policy 8-6 (Sex Discrimination and/or Sexual Harassment) covers complaints of harassment and discrimination filed against students.

Part II of this policy applies to abusive work environment complaints filed by a School Board employee against another School Board employee.

A complainant may file a complaint regarding behaviors that overlap categories described in Part I and Part II of this policy. In those instances, the complaint may be investigated and addressed under either or both sections of the policy.

A. Part I – Harassment and Discrimination

1. Definitions and Covered Categories

- a. Conduct which may constitute harassment or discrimination may include but are not limited to the following if based on race, national origin, ancestry, color, sex, sexual orientation, perceived sexual orientation, gender identity, pregnancy, childbirth or related medical condition, marital status, age, religion, disability, genetic information, or veteran status:
 - (i) graffiti containing offensive language;
 - (ii) name calling or jokes;
 - (iii) physical acts of aggression against a person or their property;

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- (iv) written or graphic material, including social media communication, which is posted or circulated and which intimidates or threatens individuals; or
 - (v) physical or verbal conduct when the conduct:
 - (a) creates an intimidating, hostile, or offensive working or educational environment;
 - (b) substantially or unreasonably interferes with an individual's work or education; or
 - (c) otherwise is sufficiently serious to limit an individual's employment or educational opportunities.
- b. Harassment or discrimination in the employment relationship may also include but is not limited to the following if based on race, national origin, ancestry, color, sex, sexual orientation, perceived sexual orientation, gender identity, pregnancy, childbirth or related medical condition, marital status, age, religion, disability, genetic information, or veteran status:
 - (i) adverse employment actions to including hiring, firing, promotion, pay practices, and all other terms or conditions of employment;
 - (ii) adverse action in retaliation against an individual for opposing discrimination under the Equal Employment Opportunity Commission (EEOC)-enforced laws, or for participating in an EEO complaint process by, for example, filing a complaint or serving as a witness; or
 - (iii) harassment or discrimination that is motivated by one or more protected category so long as the harassment or discrimination is severe and pervasive.
- c. No individual shall discriminate on the basis of sex or harass an employee or student by making unwelcome sexual advances or requests for sexual favors or engaging in other verbal or physical conduct of a sexual nature, including the following:
 - (i) Submission to or rejection of such conduct as a basis for employment or academic decisions affecting the employee or student.
 - (ii) Such conduct creates an intimidating, hostile, or offensive working or educational environment.
 - (iv) Submission to such conduct is made either explicitly or

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implicitly a term or condition of the individual's employment or participation in school programs.

- (iv) Examples that may constitute sexual harassment are:
 - (a) Unwelcome physical contact of a sexual nature;
 - (b) Unwelcome ongoing or repeated flirtations or propositions or remarks;
 - (c) Sexual slurs, leering, epithets, threats, verbal abuse, derogatory comments or sexually degrading descriptions;
 - (d) Graphic comments about a person's body;
 - (e) Jokes, pictures, drawings, notes, social media communications, or gestures of a sexual nature;
 - (f) Impeding or blocking movement in a sexually suggestive or intimidating manner;
 - (g) Sexual or romantic invitations to students;
 - (h) Dating students or soliciting dates with students;
 - (i) Engaging in sexualized dialogue with students;
 - (j) Making suggestive comments to students or in the known presence of students;
 - (k) Physical exposure of a sexual, romantic, or erotic nature;
 - (l) Self-disclosure of a sexual or erotic nature to students or in the known presence of students; or,
 - (m) Sexual contact or inappropriate overtures to students whether they be physical, verbal, non-verbal, written or electronic.

- (v) Title IX of the Education Amendments of 1972 prohibits discrimination based on sex in education programs and activities that receive federal financial assistance. The U.S. Department of Education gives grants of financial assistance to schools and colleges. Title IX Federal regulations describe the conduct that violates Title IX. Examples of the types of discrimination that are covered under Title IX include sexual harassment and discrimination based on pregnancy, as well as the failure to provide equal opportunity in educational programs, including but not limited to course offerings, educational activities, physical education, and athletics. The Title IX regulation is enforced by U.S. Office of Civil Rights and is in the code of federal regulations at 34 CFR Part 106. This policy also provides a

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local process for employee use. Employees eligible to file grievances under School Board Policy 7018, Procedure for Adjusting Grievances, may also use that process.

- d. No otherwise qualified disabled person shall, solely by reason of disability, be excluded from participation in, be denied the benefits of, or otherwise be subjected to discrimination under any program or activity which receives or benefits from federal financial assistance. For purposes of this policy, a qualified disabled person shall be one who satisfies the definition set forth in the Rehabilitation Act of 1973, as amended, and its implementing regulations.

2. Harassment and Discrimination Complaint and Investigation Procedures

- a. Compliance Officers. The Superintendent shall name three compliance officers and an alternate whose contact information shall be provided in the regulation accompanying this policy. The role of the compliance officers is to review investigative findings to determine if harassment and/or discrimination occurred, and then to refer the determinations to the Superintendent. The accompanying regulation to this policy identifies the Title IX Officer for the school division.
- b. Filing a Complaint. Any employee or student who believes they have been subjected to harassment or discrimination by an adult in the work or educational environment should file a complaint immediately with their supervisor or principal, or with the Assistant Superintendent for Human Resources and Talent Development. The principal or supervisor receiving the complaint shall report it immediately to the Assistant Superintendent for Human Resources and Talent Development. The principal or supervisor will advise all persons making a report that it shall be reported to the compliance officers who may request that the complaint be in writing; however, refusal to put the complaint in writing shall not preclude an investigation. The complaint should state in detail the basis for the complaint, the names of the persons involved or who have knowledge of the facts, and the dates of any specific incidents. A complaint form is available on the school division webpage as a regulation to this policy specifically for harassment or discrimination complaints related to a characteristic outlined in this policy.

If a principal or supervisor fails to report a complaint in accordance with this policy, the individual filing the complaint shall notify the

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Assistant Superintendent for Human Resources and Talent Development who shall ensure the investigative process is promptly initiated. It is important that all levels of management ensure that reasonable care is exercised to prevent and promptly correct any harassment or discrimination.

- c. Confidentiality. The confidentiality of all interviewees will be observed, provided that it does not interfere with the investigation or with the ability to take corrective action. Investigators shall inform interviewees of confidentiality to the extent allowed by law.
- d. Level of Filing. If the complaint is against one's immediate supervisor or principal, it may be filed with the next supervisory level or with the Assistant Superintendent of Human Resources and Talent Development. Employees of the Department of Human Resources and Talent Development may file a complaint with any of the other Compliance Officers. If the complaint is against a Compliance Officer, it shall be filed with the Division Superintendent. If the complaint is against the Division Superintendent, the complaint shall be filed with the Chairman of the School Board. The question of whether a particular action or incident is prohibited behavior requires a determination based on all the available facts.
- e. Investigation. An investigation of all reported incidents shall be undertaken promptly and shall be completed and findings provided to the Division Superintendent within 30 working days or as soon as practicable from the filing of the complaint, except that if the allegations involve the Division Superintendent, the findings shall be provided to the Chairman of the School Board. The Division Superintendent shall make the determination whether the complaint is founded or unfounded, and that a violation of this policy occurred, within 15 working days of receipt of the compliance officers' recommendations or as soon as practicable. The complainant and the individual who is the subject of the complaint shall be notified whether the complaint was determined to be founded or unfounded within 5 working days of the determination. In the event a complaint is determined to be unfounded and the subject of the complaint is an employee, no record of the actual complaint shall be maintained in the employee's personnel file, subject to any appeal.
- f. Mediation. At any time in the process, the Compliance Officers or the Division Superintendent may attempt to mediate by mutual agreement a complaint with the individuals involved.

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- g. Appeal. If the Division Superintendent determines no prohibited harassment or discrimination occurred, the complainant may request a review by the School Board within 15 working days from the receipt of the Division Superintendent's decision. Notice of appeal must be filed with the superintendent who shall forward the record to the School Board. The School Board shall make a determination to uphold, reverse or modify the Superintendent's decision within 30 working days of the request for review, or as soon as practicable. Written notice of the School Board's decision will be given to both the subject of the complaint and the complainant.
- h. Harassment or Discrimination Complaint Form. A form on which to make a harassment or discrimination complaint shall be included in the regulation to this policy but, while preferred, it is not required to be used.
- i. Alternate Complaint Procedures. Nothing in this policy shall deny the right of any individual to pursue other avenues of recourse to address concerns relating to harassment or discrimination including initiating filing a complaint with outside agencies or seeking redress under state or federal law. Employees may choose to pursue their complaints under this policy through the relevant employee grievance procedure instead of the complaint procedure in this policy.
- j. Retaliation. Any individual filing a harassment or discrimination complaint shall be free from retaliation for filing such a complaint. Retaliation against anyone reporting or thought to have reported harassment or discrimination is prohibited. Such retaliation is a serious violation of this policy and shall be independent of whether a charge or informal complaint of harassment or discrimination is substantiated. Encouraging others to retaliate also violates this policy. An employee may not be fired, demoted, harassed or otherwise retaliated against for filing a charge of harassment or discrimination, participating in a harassment or discrimination proceeding, or otherwise opposing harassment or discrimination. Examples of protected opposition include:
 - (i) Complaining to anyone about alleged discrimination against oneself or others;
 - (ii) Threatening to file a charge of discrimination;
 - (iii) Picketing in opposition to discrimination; or
 - (iv) Refusing to obey an order reasonably believed to be discriminatory.

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- k. Consequences. School Board employees who are determined to have engaged in harassment or discrimination are subject to appropriate disciplinary action and/or appropriate training. Individuals who are not employed by the school division who are determined to have engaged in harassment or discrimination are subject to appropriate consequences.
- l. Falsification. Students or School Board employees who knowingly make false charges of harassment or discrimination are subject to disciplinary action. Reasonable, good faith beliefs of unlawful harassment or discrimination will not result in discipline if the allegations are later proven untrue.

B. Part II – Abusive Work Environments.

- 1. Definitions. Abusive work environments in the school division are prohibited. Abusive work environments can be created by bullying. Bullying means any aggressive and unwanted behavior that is intended to harm, intimidate, or humiliate the victim. It involves a real or perceived power imbalance between the aggressor or aggressors and victim and is repeated over time or causes severe emotional trauma. 'Bullying' includes cyber bullying. 'Bullying' does not include ordinary teasing, horseplay, argument, or peer conflict.
- 2. Abusive Behavior Complaint Procedure. If an employee feels they have been subjected to abusive behavior by an employee of Loudoun County Public Schools, the concerns should be brought to the attention their supervisor as soon as possible following the incident giving rise to concern. If the complaint is about the employee's supervisor, they should report the complaint to the supervisor's supervisor. If a supervisor fails to exercise reasonable care in addressing a complaint in accordance with this policy, the employee shall notify the Assistant Superintendent for Human Resources and Talent Development who shall ensure the complaint is promptly addressed. It is important that all levels of management ensure that reasonable care is exercised to prevent and promptly correct any bullying behaviors.
- 3. Retaliation. Retaliation or reprisal against an employee who alleges an abusive work or educational environment or assists in the investigation of an allegation of an abusive work environment is prohibited. Examples of retaliation and protected opposition are outlined above in Section A.2.j (Retaliation).
- 4. Consequences. School Board employees who are determined to have contributed to an abusive work environment are subject to appropriate disciplinary action.
- 5. Falsification. Students or School Board employees who knowingly make false charges of an abusive work environment are subject to disciplinary action.

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Reasonable, good faith beliefs of an abusive work environment will not result in discipline if the allegations are later proven untrue.

[Former Policy 7-2, 7-2A, 7-34]

Adopted: 6/11/85

Revised: 10/13/92, 6/22/93, 2/9/99, 11/29/11, 6/26/12, 4/22/14, 1/10/17

Current Revision: 12/3/19

Legal Refs: Code of Virginia §§ [22.1-78](#), and [2.2-3900](#) *et seq.*, [Title IX of the Civil Rights Act](#), [20 USC §1681](#), [Title VII of the Civil Rights Act](#), [42 USC §2000e](#), [34 C.F.R. Part 106 et seq.](#), [Uniformed Services Employment and Reemployment Rights Act \(USERRA\)](#), [38 U.S.C. 4301-4335](#), §§ [44-93.2 to 44-93.5](#) of the Code of Virginia

Cross Refs: Policy [1040](#), Equal Opportunity for Equitable, Safe and Inclusive Environment, Policy [7012](#), Equal Opportunity Employment, [Regulation 7014](#), Environments Free from Harassment, Discrimination, and Abuse, Policy [7016](#), Employment Complaints, Policy [7560](#), Professional Conduct, Policy [8-6](#), Sex Discrimination and/or Sexual Harassment